



Mathew Tyler

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Plaintiff, *Pro per pro se*

Dated: June 17, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

_____/

***Case No.* 2:2025CV00404**

**PLAINTIFF'S MOTION TO DISMISS PURSUANT TO RULE 12(b)(6) AND
MOTION TO STRIKE PURSUANT TO RULE 12(f)**

INTRODUCTION

Pursuant to Federal Rules of Civil Procedure 12(b)(6) and 12(f), Plaintiff moves to dismiss all defensive pleadings filed by the government and to strike them as insufficient, impertinent, and scandalous matter. The government's defense of its electoral system, a system that fundamentally violates the Due Process and Equal Protection Clauses of the Constitution, as well as multiple federal anti-discrimination statutes, constitutes a series of *ultra vires* acts. The state officials filing these defenses are acting without constitutional authority, stripped of the sovereign immunity they claim, and are therefore legally incapable of representing the state in this matter. Their pleadings are a legal nullity and must be dismissed and stricken from the record.

This motion is founded on a clear and developing line of Supreme Court jurisprudence that affirms federal constitutional supremacy in federal elections. As this Court will see, state officials cannot defend unconstitutional conduct, and any attempt to do so is an indefensible legal fiction that this Court has the power and the duty to reject.

ARGUMENT

I. Standard of Review

This Court is bound by a well-established standard of liberal construction when evaluating the pleadings of self-represented litigants. This duty is not merely advisory but is a mandatory lens through which all of Plaintiff's arguments must be viewed. The pleadings of a *pro se* plaintiff are held "to less stringent standards than formal pleadings

1 drafted by lawyers," *Haines v. Kerner*, 404 U.S. 519, 520-21 (1972), and must be
2 "liberally construed." *Erickson v. Pardus*, 551 U.S. 89, 94 (2007).

3 This District has recently affirmed this binding principle in *Dunham v. Mohyuddin*, 2:23-
4 CV-2757-DMC-P, (E.D. Cal. Jan. 29, 2025), stating, "The Court must also construe the
5 alleged facts in the light most favorable to the plaintiff. See *Scheuer v. Rhodes*, 416 U.S.
6 232, 236 (1974); see also *Hosp. Bldg. Co. v. Rex Hosp. Trustees*, 425 U.S. 738, 740
7 (1976); *Barnett v. Centoni*, 31 F.3d 813, 816 (9th Cir. 1994) (per curiam). All ambiguities
8 or doubts must also be resolved in the plaintiff's favor. See *Jenkins v. McKeithen*, 395
9 U.S. 411, 421 (1969)."

10 The Ninth Circuit imposes a heightened "duty to ensure that pro se litigants do not lose
11 their right to a hearing on the merits of their claim due to ignorance of technical
12 procedural requirements." *McElyea v. Babbitt*, 833 F.2d 196, 197 (9th Cir. 1987). Indeed,
13 the motions of a self-represented, *in forma pauperis* plaintiff "should be viewed with
14 special solicitude." *Johnson v. Reagan*, 524 F.2d 1123, 1124 (9th Cir. 1975). It is under
15 this non-discretionary standard of special solicitude and liberal construction that the
16 Court must evaluate the remainder of this motion.

17 **II. The State's Electoral Scheme Violates Fundamental Rights Protected by the Due**
18 **Process and Equal Protection Clauses.**

19 The Fifth and Fourteenth Amendments to the United States Constitution stand as a
20 bulwark against government overreach, mandating that no person shall be "deprived of
21 life, liberty, or property, without due process of law." This guarantee encompasses both

1 procedural and substantive due process. The Supreme Court in *Washington v. Glucksberg*,
2 521 U.S. 702, 720-21 (1997), affirmed that the Due Process Clause provides heightened
3 protection against government interference with fundamental rights and liberty interests,
4 protecting them from arbitrary government action regardless of the procedures used. The
5 right to vote, to seek public office, and to participate in the democratic process on an
6 equal basis are undeniably among these fundamental rights.

7 Simultaneously, the Equal Protection Clause requires the government to treat similarly
8 situated individuals alike. *City of Cleburne v. Cleburne Living Ctr.*, 473 U.S. 432, 439
9 (1985). The state's electoral system, by creating arbitrary and discriminatory barriers,
10 violates this core principle by treating Plaintiff and other qualified individuals differently
11 from those who are permitted to participate.

12 Because these state actions burden fundamental rights and affect discrete minority
13 groups, including individuals with disabilities, they are subject to the highest level of
14 judicial review: **strict scrutiny**. Any government action burdening these rights must be
15 narrowly tailored to serve a compelling government interest. *Id.* at 440; *see also United*
16 *States v. Carolene Products Co.*, 304 U.S. 144, 152 n.4 (1938). The state can offer no
17 interest, let alone a compelling one, that would justify the wholesale disenfranchisement
18 and fraudulent administration of a federal election.

19 **III. The November Presidential Election is a Legally Inconsequential Fraud**
20 **Perpetuated by State Actors.**

1 The entire edifice of the state-administered November presidential election is a deceptive
2 enterprise. In accordance with U.S. Constitution, Article II, Section 1, the 12th
3 Amendment, the 23rd Amendment, and 3 U.S.C. §§ 1-21, the sole body with the
4 constitutional power to elect the President is the Electoral College. The electors of this
5 college are free to vote as they see fit and have demonstrated this independence in the
6 elections of 1824, 1876, 1888, 2000, and 2016. The legally significant vote does not
7 occur on the first Tuesday of November, but on the first Tuesday after the second
8 Wednesday in December, when the electors cast their ballots.

9 The November popular vote is, as a matter of constitutional law, inconsequential and
10 without binding force. Its only function is to fraudulently purport fraudulent state interest
11 under the guise of democratic participation. When the state and its media collaborators
12 declare a state a "swing state," they engage in a form of false advertising. The only
13 purpose for excluding any person from the irrelevant, yet federally funded election is to
14 perpetuate the "edifice of a decadent past"—an overconfident scheme to defraud the
15 United States and her people of a fair and free election and the right to suffrage without
16 first affording due process.

17 **IV. State Electoral Procedures Are a War Against the Constitution and Are Riddled**
18 **with Unlawful Discrimination.**

19 The state cannot immunize its discriminatory electoral procedures by labeling them
20 "procedures." The statute/law *is* the procedure, and its resulting effect *is* the qualification
21 or criteria. For example, California Elections Code § 8400 outlines a procedure—a series

1 of steps for gathering signatures—that results in a qualification to participate on the
2 ballot. If California Elections Code § 8400 outlined the procedure for the age to
3 participate in an election, the law would be the procedure whilst the effect, the age
4 established by the procedure would be the qualification.

5 Even if states possess the authority to create such procedures, that authority must yield to
6 the Supremacy Clause. State electoral laws are subject to superior federal laws, including
7 the comprehensive anti-discrimination mandates of Section 504 of the Rehabilitation Act
8 and the Americans with Disabilities Act (ADA). The Second Circuit's reasoning in *Mary*
9 *Jo C. v. New York State and Local Retirement Sys.*, No. 11-2215 (2d Cir. 2013), is
10 dispositive: "the ADA's reasonable modification requirement contemplates modification
11 to state laws, thereby permitting preemption of inconsistent state laws, when necessary to
12 effectuate Title II's reasonable modification provision."

13 By defending these laws, state officials are waging a war against the Constitution. As the
14 Supreme Court declared in *Cooper v. Aaron*, 358 U.S. 1, 18 (1958), "No state legislator
15 or executive or judicial officer can war against the Constitution without violating his
16 undertaking to support it." Their actions constitute unlawful "discrimination" as defined
17 across a broad swath of federal law, including:

- 18 • **42 U.S.C. § 2000a(a) & (d):** Discrimination or segregation in places of public
19 accommodation.
- 20 • **42 U.S.C. § 2000d:** Discrimination under any program or activity receiving
21 Federal financial assistance.

- 1 • **42 U.S.C. § 12132 & 28 C.F.R. § 35.130(a):** The exclusion from participation in
2 or denial of the benefits of the services, programs, or activities of a public entity
3 to a qualified individual with a disability.
- 4 • **42 U.S.C. § 12182(b)(1)(A)(i) & (b)(2)(A)(ii):** The denial of the opportunity to
5 participate in or benefit from services and the imposition of eligibility criteria that
6 screen out individuals with disabilities.

7 By filing defensive pleadings in this matter, the government is actively seeking to further
8 exclude, rather than include, qualified individuals with a disability, a direct violation of
9 the inclusionary mandates found in **29 C.F.R. § 1630.2(j)(iii)**, **28 C.F.R. § 35.130(b)(7)**,
10 **28 C.F.R. § 35.130(d)**, and **42 U.S.C. § 12182(b)(1)(B)**.

11 Any claim by the state that providing accommodations is "per se unreasonable" is legally
12 baseless. Under the ADA, that is not a lawful basis to refute a request for reasonable
13 accommodation. The only legally sufficient defense is a showing of "undue hardship," as
14 codified by **42 U.S.C. § 12111(10)** and **42 U.S.C. § 12112(b)(5)(A)**, or a showing that the
15 accommodation would "fundamentally alter the nature of the service, program, or
16 activity" (**28 C.F.R. § 35.130(b)(7)(i)**). The state has not, and cannot, meet this burden.

17 **V. The Supreme Court's Decision in *Trump v. Anderson* Renders State Defenses of**
18 **Unconstitutional Electoral Laws Untenable.**

19 The Supreme Court's unanimous decision in *Trump v. Anderson*, 601 U.S. 100 (2024),
20 provides the foundational framework for this motion. In that case, the Court decisively
21 held that states lack the constitutional power to enforce certain federal election

1 requirements against federal candidates. The Court's reasoning is directly applicable here:
2 "nothing in the Constitution delegates to the States any power to enforce [federal
3 qualifications] against federal officeholders and candidates." Allowing such state-level
4 enforcement, the Court warned, would "invert the Fourteenth Amendment's rebalancing
5 of federal and state power." This establishes that state officials defending these laws are
6 acting beyond their constitutional authority.

7 **VI. The Doctrine of *Ex Parte Young* Strips State Officials of Sovereign Immunity**
8 **and the Authority to Defend Unconstitutional Acts.**

9 When state officials act in violation of the Constitution, they are stripped of their official
10 character and cannot claim the protection of sovereign immunity. This "legal fiction," as
11 established in *Ex parte Young*, 209 U.S. 123 (1908), has profound and practical
12 consequences. Officials enforcing unconstitutional laws are not acting as agents of the
13 state; they are acting as private individuals engaged in unlawful conduct. *Whole Woman's*
14 *Health v. Jackson*, 595 U.S. ____ (2021), reaffirmed that officials with "some connection
15 with the enforcement of the act" lose immunity protection when enforcing
16 unconstitutional laws.

17 This has a direct impact on their ability to litigate. An official stripped of their
18 representative character has no authority to file defensive pleadings on behalf of the state.
19 Their attempts to do so are a legal nullity.

20 **VII. The Government's Pleadings Fail to State a Valid Defense and Must Be**
21 **Dismissed and Stricken Under Rules 12(b)(6) and 12(f).**

1 Given that the state officials lack the constitutional authority to defend these
2 unconstitutional electoral practices, their pleadings fail on two procedural grounds.

3 **A. Rule 12(f) Motion to Strike**

4 Federal Rule of Civil Procedure 12(f) permits the court to strike from a pleading "an
5 insufficient defense or any redundant, immaterial, impertinent, or scandalous matter." An
6 "insufficient defense" is one that, as a matter of law, cannot succeed under any
7 circumstances. The government's defense of an electoral system that violates fundamental
8 rights and is not narrowly tailored to a compelling interest is, by definition, an
9 insufficient defense.

10 **B. Rule 12(b)(6) Motion to Dismiss**

11 By combining this motion with a Rule 12(b)(6) motion, we emphasize that because the
12 government officials lack the authority to defend their unconstitutional conduct, they
13 have failed to state a valid defense to the Plaintiff's claims. An *ultra vires* act cannot form
14 the basis of a legitimate legal defense.

15 **VIII. The Irreparable Harm and Public Interest Mandate Judicial Intervention.**

16 The constitutional violations at issue far outweigh any administrative burden on the
17 Defendants. As the Supreme Court emphasized in *Frontiero v. Richardson*, 411 U.S. 677,
18 690 (1973), "administrative convenience" cannot justify practices that burden
19 fundamental rights. The harm to the Plaintiff and the public is irreparable. The Second
20 Circuit recognized in *Williams v. Salerno*, 792 F.2d 323, 326 (2d Cir. 1986), that "the

1 registration applicants would certainly suffer irreparable harm if their right to vote were
2 impinged upon."

3 Furthermore, the Ninth Circuit has definitively held that "it is always in the public
4 interest to prevent the violation of a party's constitutional rights." *Melendres v. Arpaio*,
5 695 F.3d 990, 1002 (9th Cir. 2012). Granting this motion and the underlying relief sought
6 is, therefore, inherently in the public interest.

7 **IX. Request for Prospective Relief**

8 The Plaintiff requests prospective injunctive relief to remedy the ongoing constitutional
9 and statutory violations. Specifically, the Plaintiff requests that the Court:

- 10 1. Declare that the state's administration of the popular vote for President, in a
11 manner that presents it as legally determinative, is a violation of Article II, Section
12 1 and a fraud upon the electorate.
- 13 2. Enjoin the state from enforcing its discriminatory ballot access laws and electoral
14 procedures against candidates and voters in a manner that violates the ADA,
15 Section 504, the Due Process Clause, and the Equal Protection Clause of the
16 Constitution.
- 17 3. Declare the 2024 presidential election void ab initio as fruit of the poisonous tree
18 resulting from *ultra vires acts* and systematic discrimination and therefore void.

19

20

1 **CONCLUSION**

2 The defensive pleadings filed by the government are an attempt to legitimize a series of
3 *ultra vires* acts. The state officials behind these filings are acting without constitutional
4 authority and without the protection of sovereign immunity. Their defenses are
5 insufficient as a matter of law. Applying the mandatory standard of special solicitude and
6 resolving all doubts in the Plaintiff's favor, this Court, in adherence to the supreme
7 authority of the U.S. Constitution and the precedents of the Supreme Court, should grant
8 this combined motion, dismiss the government's defenses, strike their pleadings, and
9 proceed to adjudicate the merits of the Plaintiff's claims for prospective relief and any
10 other relief appropriate.

11 Dated: June 17, 2025

12
13 Respectfully submitted,



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21 **Plaintiff, *Pro per pro se***

1 VERIFICATION

2
3 I, Mathew Tyler, declare under penalty of perjury under the laws of the State of California
4 that the foregoing is true and correct to the best of my knowledge and belief.

5
6 Executed on June 17, 2025, at Butte County, California.



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15 **Plaintiff, *Pro per pro se***